

Master-calendar pleadings and scheduling record

February 6, 2024 appearance

A.R.M. appears remotely with counsel. DHS appears through institutional actor code DHS-TC-7. Kalyrian interpreter INT-31 is sworn for the hearing. The immigration judge confirms that A.R.M. can hear the interpreter and understands that the hearing concerns the January notice.

Counsel states that A.R.M. will concede the five numbered factual allegations and the single overstay charge, designate no alternative country, and seek protection under the Convention Against Torture. Counsel does not seek asylum or statutory withholding in this proceeding.

The court does not accept a blanket waiver. It takes each pleading separately, confirms the limited scope through the interpreter, and reserves all CAT factual and legal questions for the merits record.

Counsel entered an appearance on January 29, 2024. The notice address is replaced by a counsel service channel that contains no street address or private contact information. DHS acknowledges electronic service of the appearance.

Interpreter INT-31 states that no close Kalyrian equivalent exists for the phrase “acquiescence of a public official.” The interpreter will translate it descriptively as awareness followed by a failure to intervene. A.R.M. confirms understanding; no party challenges ability to participate. The language-access finding does not determine credibility or make the interpreter a fact witness.

Pleadings to allegations 1 through 3

Through counsel and interpreter, A.R.M. admits allegation 1: A.R.M. is not a United States citizen or national. The initials-only identification protocol remains in force.

A.R.M. admits allegation 2 only as written: citizenship of the Republic of Kalyra. The admission supplies no country-conditions finding and does not concede that Kalyrian authorities will provide protection.

A.R.M. admits allegation 3: inspection and admission as a temporary visitor on August 8, 2023. The parties stipulate that the admission-history entry is sufficient for that narrow fact; DHS need not introduce a passport or personal travel identifier.

The judge asks A.R.M. to confirm that counsel explained each allegation before the hearing. A.R.M. answers yes. Counsel confirms that the admissions are not conditioned on CAT eligibility and do not withdraw the account of detention, threats, or official inaction.

The court accepts the three admissions as knowing and limited.

Pleadings to allegations 4 and 5 and the charge

A.R.M. admits allegation 4: the authorized visitor period ended December 31, 2023. A.R.M. admits allegation 5: continued presence when the notice issued January 9, 2024, without an extension or change of status.

A.R.M. concedes the single charge under 8 U.S.C. § 1227(a)(1)(B). DHS withdraws no allegation and adds no charge. The judge sustains removability on the admissions and the admission-history entry.

Counsel states that concession avoids an unnecessary identity and admission-history contest; it does not concede the lawfulness of removal to Kalyra if CAT protection is established. DHS agrees that the CAT application must be adjudicated on its own evidence.

The judge explains that the eventual final order will depend on the protection decision and any appeal. A.R.M. confirms understanding. No party asserts a criminal bar, persecutor bar, or security ground in this record.

Relief election and CAT-only scope

Counsel elects protection under CAT implementing regulations and requests permission to file an application with declarations, medical evidence, translations, and country material. Counsel states that the requested form of protection may include withholding or, if legally applicable, deferral; the merits evidence will address the same more-likely-than-not torture question.

A.R.M. does not apply for asylum in this proceeding. The omission prevents the record from silently converting a CAT issue into a protected-ground or discretionary asylum case. A.R.M. likewise does not pursue cancellation, adjustment, voluntary departure, or a waiver.

DHS reserves the right to challenge the probability of future harm, whether predicted conduct meets the regulatory torture definition, and whether any public official would consent or acquiesce. DHS does not object to setting the CAT application for adjudication.

The judge records “CAT-only merits” as the contested phase and directs that future briefs keep the theories separate from conceded removability.

Country designation and removal destination

The judge asks whether A.R.M. wishes to designate a country of removal. Counsel declines to designate any country and objects to removal to Kalyra on CAT grounds. DHS identifies Kalyra as the proposed destination based on the conceded citizenship.

The judge designates Kalyra for purposes of continuing the proceeding while preserving the CAT objection. No alternative destination is litigated. The record therefore asks whether A.R.M. is more likely than not to be tortured in Kalyra, not whether relocation to a third country is available.

Counsel previews three asserted risk sources: Directorate Unit Four, Harbor League actors with official access, and central registry personnel who flag returned procurement witnesses. DHS states that each alleged source and the government's response remain disputed.

The judge does not assign probabilities or require each source independently to satisfy the CAT threshold at this hearing. Those questions are reserved for the evidence and decision.

Filing schedule

The court sets April 12, 2024 for A.R.M.'s application, declaration, witness list, and then-available corroboration. DHS evidence is due June 14. Objections to authenticity or translation must identify the document and ground by August 16. The individual merits hearing begins September 17.

Counsel states that Nadia Pel's declaration is expected with the April filing and asks that an agency exhibit number be assigned when lodged. DHS requests an opportunity to review the declaration and any employment foundation before the objection deadline.

The judge directs the clerk to maintain an exhibit receipt distinct from any certified index. The receipt must state the identifier, page count, lodging date, and eventual admission ruling for each offered exhibit.

Deadlines on this page govern only this agency proceeding.

Witness and exhibit protocol

A.R.M.'s anticipated witnesses are A.R.M., S.M., Nadia Pel if available remotely, and a country expert. DHS may cross-examine and may call a country-response witness. The parties will identify hearsay and foundation objections document by document.

The clerk assigns preliminary identifiers: P-1 to the CAT application, P-2 to S.M.'s declaration, P-3 to the family corroboration packet, and P-7 to A.R.M.'s sworn declaration. Identifiers P-4 through P-6 are reserved for the intervening message, complaint-routing, translation, and clinic components listed with the application.

The judge states that lodging does not equal admission. The merits transcript must state the disposition of each objection. An exhibit receipt will record the hearing ruling and page count.

Translated material must include source images, translator certification, and paragraph mapping. No sealed or classified material is anticipated. The initials-only privacy protocol applies to all public filings.

Agreed procedural facts

The parties agree for scheduling purposes that A.R.M. worked in municipal procurement records, left Kalyra in August 2023, and seeks CAT protection based on asserted events before departure. The agreement narrows foundational proof; it is not agreement that detention, abuse, threats, future risk, or official acquiescence occurred.

The parties also agree that Nadia Pel formerly held a municipal compliance position and can authenticate the office routing memorandum if she testifies or supplies a declaration meeting the established foundation. DHS reserves weight and credibility arguments.

DHS does not contest that Kalyrian anti-torture provisions exist on paper. A.R.M. reserves the argument that formal rules do not establish actual intervention and that evidence of complaint routing and official access must be considered.

Only these stated facts are stipulated. The merits decision must identify what it credits, rejects, or leaves unresolved.

Contested merits questions

The prehearing issue list records five contested questions:

1. What happened during A.R.M.'s May 2023 Unit Four detention?
2. What future harm is predicted from Unit Four, Harbor League, and registry personnel?
3. Must the probability attributable to those sources be assessed cumulatively?
4. Did public officials know of likely torture and breach a responsibility to intervene, including through willful blindness?
5. What protection follows if the regulatory standard is met?

DHS adds credibility, corroboration, and internal-relocation contentions. A.R.M. states that relocation within Kalyra is not a categorical defense but relevant evidence to be evaluated with the rest.

Record composition is not presently contested because all parties expect the clerk to retain any exhibit admitted at the merits hearing.

Merits-hearing logistics

The September 17 hearing will use a Kalyrian interpreter for A.R.M. and S.M. Nadia Pel may appear by secure video if the connection test succeeds. The country expert will testify in English and explain all Kalyrian terms used in the report.

The court allocates the first session to A.R.M.'s testimony and foundational exhibits and the second to corroborating witnesses, expert testimony, and DHS evidence. Time allocations are management estimates, not limits on relevant testimony.

Counsel must state exhibit identifiers when questioning a witness. The clerk must repeat whether an exhibit is marked, lodged, admitted, or excluded. This protocol is designed to create an unambiguous, reviewable record of each exhibit's status.

The hearing will not take testimony about events that have not yet occurred. Any later event must be presented through whatever separate procedure the law permits; it cannot be silently inserted into the closed agency case file.

Master-calendar order

The immigration judge orders:

- allegations 1–5 and the single charge are sustained on A.R.M.'s limited concessions;
- Kalyra is the proposed country of removal over the preserved CAT objection;
- CAT withholding or deferral is the only protection claim set for merits;
- the April, June, August, and September dates stated in the filing schedule are adopted;
- Kalyrian interpretation will be provided;
- initials-only identification remains in effect; and
- the clerk will maintain both an exhibit receipt and any required certified index.

No merits finding is made. The order neither admits P-7 in advance nor excludes any expected evidence. It does not assess credibility, probability, aggregation, or acquiescence.

The parties acknowledge the order through institutional actor codes. A.R.M. confirms through the interpreter that counsel explained the next filing date and hearing date.

Hearing-record certification and page map

Clerk EC-5 certifies that this twelve-page master-calendar record accurately captures the February 6 appearance and resulting order. The audio analogue and clerk minutes agree on the concessions, CAT-only election, Kalyra designation, and schedule.

Contemporaneous page map:

- page 1: appearance, counsel, and interpretation;
- pages 2–3: allegation and charge pleadings;
- pages 4–5: relief election and country designation;
- pages 6–7: schedule and exhibit protocol;
- pages 8–9: agreed facts and contested questions;
- page 10: merits-hearing logistics;
- page 11: master-calendar order; and
- page 12: this certification.

Future exhibit status must be proved by the merits transcript and exhibit receipt, not by this scheduling record.